

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
MODOM CURRY,

Date Filed:

Plaintiff,

SUMMONS

- against -

Plaintiff designates
New York County
as the place of trial.

THE CITY OF NEW YORK, P.O. SEAN SLOMAN
(Shield #16483), P.O. WALTER MANCILLA
(Shield # 26247), NYPD OFFICERS JOHN/JANE DOE #1-5,
NEW YORK POLICE DEPARTMENT AND/OR THE
CITY OF NEW YORK,

The basis of venue is:
Place of Occurrence

Defendants,
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 18, 2024

To:

Yours, etc.,

CITY OF NEW YORK
100 Church Street,
New York, New York 10007

P.O. SEAN SLOMAN
(Shield #16483)
1 Police Plaza
New York, NY 10007

P.O. WALTER MANCILLA
(Shield # 26247)
1 Police Plaza
New York, NY 10007

New York Police Department
1 Police Plaza
New York, NY 10007

MEIROWITZ & WASSERBERG, LLP



LAURITA RODRIGUEZ

Attorney for Plaintiff

MODOM CURRY
332 E. 149th Street, Suite 201
Bronx, New York 10451
(646) 661-1221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

MODOM CURRY,

Plaintiff,

- against -

Index No.:

Date Filed:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P.O. SEAN SLOMAN
(Shield #16483), P.O. WALTER MANCILLA
(Shield # 26247), NYPD OFFICERS
JOHN/JANE DOE #1-5, NEW YORK POLICE
DEPARTMENT AND/OR THE CITY OF NEW YORK,

Defendants.

-----X

Plaintiff, MODOM CURRY, by his attorneys, MEIROWITZ & WASSERBERG, LLP
complaining of the Defendants, respectfully sets forth and alleges, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of the Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On March 30, 2023, at approximately 5:15 P.M., Plaintiff lawfully present in front of 126 West 112th Street, in the County of New York, State of New York when P.O. SEAN SLOMAN (Shield #16483), P.O. WALTER MANCILLA (Shield # 26247), and NYPD OFFICERS JOHN/JANE DOE #1-5 unlawfully stopped, searched, and falsely arrested Plaintiff without probable cause or legal justification. In addition, Plaintiff suffered mental and emotional injury. The Plaintiff was unlawfully searched and imprisoned by defendants for at least (24) hours before being released. Additionally, multiple unlawfully body cavity searches was performed on

Plaintiff. All charges against Plaintiff were dismissed on June 28, 2023. Plaintiff was deprived of his Federal Constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied his right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CONDITIONS PRECEDENT TO SUIT

2. That prior to the institution of this action, a Notice of Claim was filed and served upon defendants within ninety (90) days after the claim herein accrued.

3. That at least thirty (30) days have elapsed since the service of such Notice of Claim and adjustment of payment thereof has been neglected or refused.

4. That on October 20, 2023, Plaintiff testified at a statutory hearing, pursuant to General Municipal Law Section 50-h.

5. That this action is being commenced within one year and ninety days after the causes of action herein accrued.

PARTIES

6. Plaintiff, MODOM CURRY is a resident of the County of New York, State of New York.

7. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter "CITY"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned, defendant, CITY operated, maintained, managed, supervised, and controlled a police department as part of and in conjunction with its municipal functions.

9. At all relevant times herein, the New York City Police Department (“NYPD”) was a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant CITY.

10. That at all times herein mentioned, defendant, P.O. SEAN SLOMAN, SHIELD #16483 (hereinafter “P.O. SLOMAN”), was and is a police officer of the defendant, CITY, was acting within the course and scope of his employment with defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) and was acting under the color of law.

11. That at all times herein mentioned, defendant, P.O. WALTER MANCILLA, SHIELD #26247 (hereinafter “P.O. MANCILLA”), was and is a police officer of the defendant, CITY, was acting within the course and scope of his employment with defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”) and was acting under the color of law.

12. That at all times herein mentioned, defendants, NYPD OFFICERS JOHN DOE #1-5, POLICE OFFICERS (hereinafter “P.O. JOHN/JANE DOES #1-5”) from the 28th Police Precinct are fictitious names intended to designate NYPD officers involved in the arrest of Plaintiff, and said Defendants were and are police officers of defendant, CITY, were acting within the scope of their employment with the NYPD and were acting under the color of law.

13. At all relevant times herein, defendant, CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers, officials or policy makers, as well as the individually named NYPD Defendants herein.

14. At all relevant times herein, Defendant, CITY, was responsible for enforcing the

rules and regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

STATEMENT OF FACTS

15. On March 30, 2023, at approximately 5:15 P.M., Plaintiff, MODOM CURRY, was lawfully present outside of 126 West 112th Street in the County of New York, State of New York when defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5, unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

16. At the above time and place, Plaintiff did not possess weapons, drugs, drug paraphernalia, or any contraband whatsoever.

17. For no reason at all, Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 apprehended Plaintiff while he was lawfully outside of the aforementioned location.

18. Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 without any cause or reason, ordered Plaintiff to put his hands behind his back, handcuffed Plaintiff, and placed him under arrest.

19. Plaintiff was transported to the 28th Police Precinct, located at 2271-89 Frederick Douglas Blvd, New York, New York 10027.

20. At the 28th Police Precinct, Plaintiff was fingerprinted and photographed by defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5.

21. Subsequently, Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5, without sufficient legal basis, performed a body cavity search of the Plaintiff. The body cavity search of Plaintiff did not yield any drugs or other contraband.

22. Approximately nine (9) hours after Plaintiff's illegal arrest, Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5, transported Plaintiff, while in custody of the NYPD, to NYC Health & Hospitals Harlem Hospital located at 506 Lenox Avenue, Bronx, New York 10037 where he was submitted to unlawful and evasive medical examinations and procedures, including but not limited to, a digital rectal examination and X-Ray of the abdomen and chest.

23. On or about March 30, 2023, Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 submitted false information to the New York County District Attorney's Office, resulting in Plaintiff's unlawful prosecution.

24. Specifically, defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 falsely informed prosecutors in the New York County District Attorney's Office that subsequent to his unlawful arrest, Plaintiff flailed his arms, attempted to twist away from defendant, P.O. SLOMAN and strike defendant, P.O. MANCILLA about the groin area with his leg.

25. Approximately sixteen (16) hours after Plaintiff's illegal arrest, Plaintiff was taken by Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 to New York County Central Booking located at 100 Centre Street, New York, New York 10007.

26. Plaintiff was held in custody at central booking for approximately twelve (12) hours, awaiting arraignment.

27. On or about March 31, 2023, Plaintiff appeared before a judge of the Criminal Court of the City of New York, New York County and formally charged via criminal complaint under Docket No. CR-009010-23NY, with Assault in the Third Degree (NY P.L. § 120.00[1]); Assault in the Third Degree (NY P.L. § 120.00[2]); Resisting Arrest (NY P.L. § 205.30); Aggravated Harassment in the Second Degree (NY P.L. § 240.30[4]); and Attempted Assault in the Third Degree (NY P.L. § 110/120.00[1]); and Harassment in the Second Degree (NY P.L. 240.26[1]).

28. Following his arrest, Plaintiff was imprisoned without his consent and without justification, until he was released over twenty-four (24) hours after his arrest and given a future court date.

29. On or about June 28, 2023, the criminal case against Plaintiff was dismissed and sealed.

30. Plaintiff attended multiple court dates from the time of arraignment to the date of dismissal.

31. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

32. At no point did Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 recover any drugs, weapons, and/or any other illegal contraband from Plaintiff or from a location that was in the Plaintiff's possession, custody, or control.

33. Plaintiff was unlawfully arrested and handcuffed by Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 without legal justification or probable cause,

multiple unlawful body cavity search was performed, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

34. Some of the Defendant Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

35. That as a result of the aforementioned actions of defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

36. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION

False Arrest/Imprisonment

37. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

38. That as a result of the foregoing, Plaintiff was without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause and/or without warrant resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

39. That defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed, and seized Plaintiff without his consent and said actions were not privileged by law.

40. That the aforesaid actions by Defendants constitute a false arrest and false imprisonment in violation of Plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

41. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

SECOND CAUSE OF ACTION

Assault

42. Plaintiff, MODOM CURRY, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

43. That as a result of the foregoing, Defendants, individually and/or vicariously, by and through their agents, servants, and employees, place Plaintiff in apprehension of imminent, harmful, and offensive contact, thereby committing an assault upon him.

44. That the aforesaid actions by Defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

45. That the aforesaid actions by Defendants constitute an assault in violation of plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

46. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

THIRD CAUSE OF ACTION

Battery

47. Plaintiff, MODOM CURRY, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

48. That as a result of the foregoing, Plaintiff MODOM CURRY was without just cause or provocation, maliciously and intentionally battered and physically abused causing serious physical and psychological harm to plaintiff.

49. That at the time and place aforesaid, Defendants, individually and/or vicariously by and through their agents, servants, and/or employees, without just cause of provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff.

50. That the aforesaid actions by Defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

51. That the aforesaid actions by Defendants constitute a battery in violation of Plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

52. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

FOURTH CAUSE OF ACTION
Violation of Fourth Amendment Rights:
Unlawful Search

53. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

54. Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5, while acting in concert and within the scope of their authority, caused Plaintiff to be unlawfully searched without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable search under the Fourth Amendment of the Constitution of the United States.

55. That as a result of the aforementioned actions of the Defendants , Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

FIFTH CAUSE OF ACTION*42 U.S.C §1983 violations of Fourth and Fourteenth Amendments*

56. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

57. That Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5, under the color of law and with the indicia of authority of Defendant CITY and Defendant NYPD, violated Plaintiff's constitutional rights to be free from the unreasonable and unnecessary use of excessive force, unreasonable seizures, and to bodily integrity.

58. That Defendants are also liable under 42 U.S.C §1983 for failing to intervene to prevent the actions of the Defendants, P.O. SLOMAN, P.O. MANCILLA and/or P.O. JOHN DOES #1-5 who assaulted plaintiff during his unlawful arrest.

59. That the aforementioned actions of Defendants deprived the Plaintiff of the following rights under the United States Constitution:

- a. Freedom of summary punishment;
- b. Freedom of cruel and inhuman punishment;
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest;

60. That defendant subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights secured by the Fourth and Fourteenth Amendments of the United States Constitution, in violation of 42 U.S.C §1983, for which the individual defendants are liable.

61. That each of the Defendants' actions directly and proximately caused Plaintiff to suffer severe and permanent injuries of a physical and psychological nature.

62. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

SIXTH CAUSE OF ACTION

Monell Claim

63. Plaintiff, MODOM CURRY, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

64. That prior to May 8, 2018, and since, Defendant CITY has permitted and tolerated a pattern and practice of unjustified, unreasonable, and illegal use of force against civilians by police officers of its police department and illegal arrest by police officers of its police department. Although such illegal use of force was improper, the officers involved were not prosecuted, disciplined, or subject to restraint, and such incidents were in fact covered up with official claims that the use of force was justified and proper. As a result, police officers of defendant CITY were caused and encouraged to believe that civilian person could be abused under the circumstances not requiring the use of excessive force, and that such conduct would in fact be permitted by the defendant CITY.

65. That in addition to permitting a pattern and practice of abuse of civil persons, defendant CITY has failed to maintain a proper system for investigation of all incidents of unjustified beatings and excessive use of force by police officers.

66. That defendant CITY has maintained a system of review of unjustified and excessive use of force, and illegal arrest by police officers that has failed to identify the improper

use of force by police officers and failed to subject officers who assault citizens to discipline, closer supervision or restraint and who illegally arrested citizens, to the extent that it has become the custom of defendant CITY to tolerate the improper, illegal arrest and other wrongful actions by police officers.

67. The upon information and belief, specific flaws in the defendant CITY's use of force review process include, but not limited to, the following:

- a. Preparing reports regarding investigations of excessive force claims as routine point-by-point justifications of the police officer's actions, regardless of whether such actions are justified;
- b. Police officers investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses, and uncritically rely on reports by police involved in the incident;
- c. Police officers investigating excessive force claims failing to include in their reports relevant factual information which would tend to contradict the statements of the police officers involved;
- d. Reports in use of force cases are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect, contradictory, or incomplete information.

68. That the aforesaid acts, omissions, system flaws. Policies, and customs of the defendant CITY cause police officers of its police department to believe that excessive force and other improper actions would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers would make likely use excessive force in situations where such force is neither necessary nor reasonable.

69. That as a direct result of the aforesaid acts, omissions, systemic flaws, policies, and customs of the defendant CITY, and defendants P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5 unjustifiably assaulted and detained plaintiff all in violation of his civil and constitutional rights, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was help up to scorn and ridicule, was injured to his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

70. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

SEVENTH CAUSE OF ACTION

*Violation of Fifth and Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process*

71. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

72. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

73. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

74. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

75. In withholding/creating false evidence against Plaintiff, and in withholding/providing information with respect thereto, Defendants violated Plaintiff's right to a fair trial and to due process under the Due Process Clauses of the Fifth and Fourteenth Amendments to the Constitution of the United States.

76. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

77. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

78. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

79. Defendants commenced and continued criminal proceedings against Plaintiff.

80. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

81. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

82. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress

of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

NINTH CAUSE OF ACTION

Failure to Intervene

83. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

84. The Defendants that did not physically touch Plaintiff but were present when other police officers violated Plaintiff's constitutional rights, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, Plaintiff suffered significant injuries to his wrists, his liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

89. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and said Plaintiff has been otherwise damaged.

TENTH CAUSE OF ACTION
Negligence, Negligent Hiring and Supervision

90. Plaintiff, MODOM CURRY, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

91. That Defendants, P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5, acting within the scope of their employment, negligently discharged their duties by failing to exercise a reasonable degree of care, and thereby caused Plaintiff to sustain the injuries and deprivations aforementioned.

92. That the acts of negligence of Defendants, P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5 include, but are not limited to, forcibly detaining Plaintiff, failing to prevent clear violations of constitutional rights, and other conduct that was improper under the circumstances.

93. That the aforesaid actions by Defendants, P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5 violate the Patrol Guide, including but not limited to, Arrest Procedure policies.

94. That Defendant CITY is responsible for the negligence of its officers committed within the scope of their employment.

95. That the Defendant CITY was negligent in that prior to and at the time of the acts complained of herein, due to prior history of Defendants P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5, Defendant CITY, knew or should have known of the bad disposition of P.O. SLOMAN, P.O. MANCILLA and P.O. JOHN DOES #1-5 or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by Defendant CITY and that

due to their lack of training, these officers should have had adequate supervision so that they would not arrest and falsely imprison innocent individuals.

96. That the Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where individual, especially as here, has not committed a crime and has not resisted arrest, that it police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

97. That the Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the plaintiff herein can be arrested.
2. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

98. That the aforementioned actions by Defendants directly and proximately caused severe physical and psychological injuries to Plaintiff.

WHEREFORE, the Plaintiff, MODOM CURRY, demands judgment against the Defendants, together with the cost and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages, and attorney fees pursuant to 42 U.S.C §1988.

Dated: Bronx, New York
March 18, 2024

MEIROWITZ & WASSERBERG, LLP

By:

A handwritten signature in blue ink, appearing to read "Laurita Rodriguez", is written over a horizontal line.

LAURITA RODRIGUEZ, ESQ.

Attorneys for Plaintiff

332 E. 149th Street, Suite 201

Bronx, New York 10451

(646) 661-1221

ATTORNEY'S VERIFICATION

LAURITA RODRIGUEZ, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affirmant is the attorney of record for plaintiff **MODOM CURRY** in the within action.

Affirmant has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof.

The same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

The grounds of affirmant's belief as to all matters not stated upon affirmant's own knowledge are as follows: investigation and information received by affirmant in the course of her duties as attorney for the said Plaintiff.

Dated: Bronx, New York
March 18, 2024


LAURITA RODRIGUEZ
Attorney for Plaintiff

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MODOM CURRY,

Plaintiff,

-against-

INDEX NO.:

THE CITY OF NEW YORK, P.O. SEAN SLOMAN
(Shield #16483), P.O. WALTER MANCILLA
(Shield # 26247), NYPD OFFICERS JOHN/JANE DOE,
NEW YORK POLICE DEPARTMENT AND/OR THE
CITY OF NEW YORK,

Defendants.

-----X

SUMMONS & VERIFIED COMPLAINT

MEIROWITZ & WASSERBERG, LLP

Attorney for Plaintiff

332 E. 149th Street, Suite 201

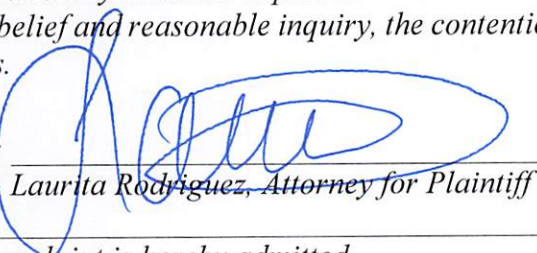
Bronx, New York 10017

(646) 661-1221

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Bronx, New York
March 18, 2024

Signed:



Laurita Rodriguez, Attorney for Plaintiff

Service of a copy the within Summons & Verified Complaint is hereby admitted.

Dated: _____
